

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BILLY JOHNSON,

Plaintiff,
-against-

**AMENDED
SUMMONS**

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER MORONI, SHIELD # 24187,
INDIVIDUALLY AND AS A POLICE OFFICER,
AND POLICE OFFICER CHRIS CICCULO, SHIELD
#6731, INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants

INDEX NO. 153851-2014

Plaintiff designates New
York County as the place of
trial the basis of venue is
New York County is the
place where the cause of
action arose.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy
of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 8, 2016


EMDIN & RUSSELL, LLP.
Attorneys for the Plaintiff
499 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

To:

City of New York
Office of the Corporation Counsel

Attorneys for all named defendants
100 Church Street, 4th floor
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
BILLY JOHNSON,

Plaintiff,

-against-

**AMENDED
VERIFIED COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER MORONI, SHIELD # 24187,
INDIVIDUALLY AND AS A POLICE OFFICER,
AND POLICE OFFICER CHRIS CICCOLO, SHIELD
#6731, INDIVIDUALLY AND AS A POLICE OFFICER,

INDEX NO. 153851-2014

Defendants
-----X

Plaintiff, Billy Johnson, by his attorneys, EMDIN & RUSSELL, LLP, as and for an Amended
Verified Complaint allege as follows:

PARTIES

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned the defendant, "City", its agents, servants and/or employees operated, maintained and controlled the defendant ,New York City Police Department, hereinafter referred to as "NYPD", including all the Police Officers therein.
3. Upon information and belief, at all relevant times hereinafter mentioned Police Officer Christopher Moroni, hereinafter referred to as "Moroni" was employed as a Police Officer by the "City" and/or "NYPD" and acted in the scope of his employment in the capacity as a Police Officer and employee of the City of New York, and/or New York City Police Department. Upon

information and belief Moroni at all relevant times hereinafter mentioned was assigned to the 25th pct. His shield Number is 21487. He is being sued individually and in his capacity as a police officer.

4. Upon information and belief Police Officer Chris Ciccolo, hereinafter referred to as “Ciccolo” was employed as a Police Officer by the “City” and/or “NYPD” and acted in the scope of his employment in the capacity as a Police Officer and employee of the City of New York, and/or New York City Police Department. Upon information and belief Ciccolo at all relevant times hereinafter mentioned was assigned to the 25th pct. His shield Number is 6731. He is being sued individually and in his capacity as a police officer.

5. Hereinafter “Moroni” and “Ciccolo” will collectively be referred to as the “officers”.

6. At all relevant times hereinafter mentioned, plaintiff Billy Johnson, hereinafter referred to as “Johnson”, or “plaintiff”, was a resident of New York County, residing at 2182 Lexington Avenue, New York, NY 10037.

7. The plaintiff timely filed a Notice of Claim and Supplemental Notice of Claim advising of the nature of his claims.

8. The plaintiff has submitted to a 50h hearing.

9. The defendants have not offered to settle the “plaintiff’s” claims.

10. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

11. On June 19, 2013 at approximately 4:15 p.m. the plaintiff was lawfully sitting inside a neighborhood park located between 130th and 131st Street and Lexington Avenue, New York, New York.

12. The plaintiff had taken his niece to the park, and when the officers drove by they questioned the plaintiff why he was inside the park and whose scooter was near the bench.

13. The plaintiff explained that it was his niece's and that she was in the local store buying ice cream with a neighborhood friend.

14. Upon information and belief the officers did not believe the plaintiff's explanation and pointed to an unknown object under the bench where the plaintiff was seated, and told the plaintiff that they now had probable cause to search him.

15. Despite the plaintiff's protestation that whatever was under the bench was not his, the officers ordered the plaintiff to stand, and they searched him.

16. During the search the officer found pepper spray attached to the plaintiff's key chain.

17. Upon information and belief Moroni questioned the plaintiff as to why he possessed pepper spray.

18. The plaintiff advised the officers that he had it for defensive purposes, in case he gets jumped.

19. Despite possessing it for lawful purposes the officers handcuffed and arrested the plaintiff.

20. The plaintiff was placed in a patrol car in front of his niece and neighbors causing him great humiliation and embarrassment.

21. The plaintiff was transported to the 25th pct. where he was placed inside a holding cell. The plaintiff was fingerprinted and photographed.

22. At approximately 5:30 p.m. on June 19, 2013 the plaintiff was released with a Desk Appearance Ticket signed by Moroni.

23. The plaintiff was charged with the crimes of unlawful possession of selling a noxious material, a violation of penal law 270.05, and sale or possession of tear gas, a violation of

administrative code 10-131 e (1). The charges were contained on a criminal complaint docket number 2013NY055167, that was signed by Moroni.

24. That due to the false criminal charges, the New York State Department of Education was notified of the plaintiff's arrest. The plaintiff is a licensed school teacher. Plaintiff was notified by the New York State Department of Education that due to his arrest his fingerprints were placed on hold, and that the arrest may have an impact on future clearances for certification and/or employment.

25. That plaintiff was compelled to hire counsel and expend monies to defend against the false criminal charges filed against him.

26. The plaintiff was required to make multiple court appearances including June 19, 2013, October 2, 2013, December 17, 2013, February 6, 2014, February 21, 2014, and on February 27, 2014.

27. All criminal charges were dismissed against the plaintiff on February 27, 2014.

28. The plaintiff experienced further embarrassment and humiliation when he was observed as a defendant in criminal court by his former student other individuals from his neighborhood.

29. The plaintiff is and always was, innocent of all the crimes charged.

30. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST
THE DEFENDANTS FOR FALSE ARREST ON BEHALF OF THE PLAINTIFF HE
ALLEGES:**

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "30" with the same force and effect as if more fully and at length set forth herein.

32. That on the 19th day of June, 2013, at the approximate hours of 4:15 P.M., the defendants, and their agents, servants and/or employees intentionally handcuffed, arrested and imprisoned the plaintiff without any just cause or grounds therefore.

33. The plaintiff was held against his will under full force of arms.

34. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

35. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuffed and arrest the plaintiff; the plaintiff was conscious of his arrest and confinement; the plaintiff did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.

36 That by reason of the aforesaid false arrest and false charges filed against the plaintiff he was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.

37. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANTS FOR FALSE IMPRISONMENT, THE PLAINTIFF

ALLEGES:

38. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "37" with the same force and effect as if more fully and at length set forth herein.

39. That beginning on the 19th day of June, 2013, at the approximate hours of 4:15 P.M., the defendants, and their agents, servants and/or employees intentionally handcuffed, arrested and imprisoned the plaintiff without any just cause or grounds therefore.

40. The plaintiff was held against his will under full force of arms until his release from custody with a Desk Appearance Ticket on Jun 19, 2013 at approximately 5:30 p.m.

41. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the plaintiff was guilty of any crimes, or that the defendants had just cause to imprison him.

42. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest or imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

43. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of his confinement; the plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

44. That by reason of his false imprisonment, the plaintiff suffered damages arising from his

deprivation of freedom and suffered physical and/or psychological trauma.

45. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF THE PLAINTIFF
AGAINST THE DEFENDANTS FOR ASSAULT AND BATTERY, HE ALLEGES:**

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if fully set forth herein.

47. That commencing on the 19th day of June, 2013, commencing at the approximate hour of 4:15 P.M. upon information and belief in the vicinity of 130th and 131st Street and Lexington Avenue, New York County, New York, the defendant "officers" while acting in the scope of their employment as police officers and as agents for the defendant the "City" and "NYPD", without just cause or provocation seized the plaintiff, searched the plaintiff and handcuffed the plaintiff.

48. Upon information and belief, the "officers" had absolutely no reason or just cause to touch, assault and batter the plaintiff.

49. The assault and battery of the plaintiff was not justified.

50. The assault and battery and physical contact was not privileged

51. That the defendants, their agents, servants and/or employees, acting as agents on behalf of the defendant "City" and/or "NYPD", within the scope of their employment, intentionally assaulted and battered the plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the plaintiff.

52. That said acts caused apprehension of such offensive contact to the plaintiff and the

defendants caused such batter in and about his body and/or limbs.

53. That by reason of the aforesaid intentional assault and battery, the plaintiff suffered physical and/or psychological injuries to his face and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering and emotional trauma, and that he was otherwise damaged.

54. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS FOR A FOURTH CAUSE OF ACTION
AGAINST ALL NAMED DEFENDANT OFFICERS
FOR 42 U.S.C. 1983 VIOLATIONS THE PLAINTIFF ALLEGES:

55 The plaintiff" repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.

56. By the aforesaid acts, the defendant "officers" individually and collectively have violated the plaintiff's right: to due process of law; to be free from discrimination based upon race; to be free from illegal search and seizure; and to Equal protection of the laws under the Fourteenth Amendment to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 USC 1983.

57. The conduct and actions of the named defendant police officers, acting under color of law, in seizing the plaintiff, in searching the plaintiff; in handcuffing the plaintiff; and in falsely arresting, imprisoning, incarcerating, and in maliciously prosecuting the plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of

each of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq.,

58. Each of the defendant police officers actions, individually and collectively deprived the Plaintiff of his rights including, but not limited to, under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons, the Fifth, Sixth and Fourteenth Amendments guaranteeing due process, right to fair trial and equal protection under the law and Title 42 U.S.C. 1983 et seq.

59. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A FIFTH
CAUSE OF ACTION FOR NEGLIGENCE AGAINST THE "CITY"
THE PLAINTIFF ALLEGES

60 The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully and at length set forth herein.

61. That the City and/or NYPD were at all relevant times hereunder, negligent in the screening, testing, examining, hiring, investigating, training, retaining, retraining, promoting, supervising, monitoring, disciplining and/or assigning of its officers, including the defendants named herein.

62. That upon information and belief the defendants negligently advised, trained or provided adequate information regarding the law of stop, question and frisk; search and seizure; probable cause; possession of weapon and affirmative defenses to possession of weapon.

63. That as a result of their negligence, the above named plaintiff was falsely arrested, assaulted

and battered, maliciously prosecuted, injured and had his constitutional and civil rights violated.

64. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION,
AGAINST ALL NAMED DEFENDANTS, THE PLAINTIFF ALLEGES:

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if more fully and at length set forth herein.

66. The defendants, including Moroni and Ciccolo, filed false charges/reports/statements for the purpose of prosecuting the plaintiff for a crime that they know or should have known that the plaintiff did not commit.

67. That as a result of the defendants conduct the plaintiff was arrested, prosecuted, caused to attend court appearances and hire legal counsel.

68. The plaintiff was and always was innocent of all crimes charged.

69. That all criminal charges were dismissed against the plaintiff on February 27, 2014.

70. That by reason of the aforesaid, the plaintiff has been injured in mind and body, had his freedom deprived and was damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the sixth causes of action, plus attorneys fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
February 11, 2016

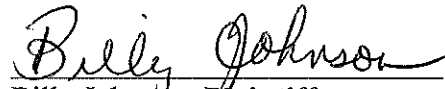
A handwritten signature in black ink, appearing to read 'Jeffrey Emdin', is written over a horizontal line.

Emdin & Russell, LLP.
Jeffrey Emdin
Office and P.O. Address
499 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

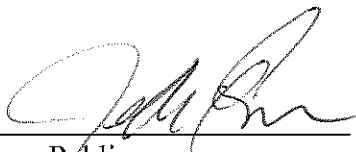
CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Billy Johnson, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Amended Summons and Amended Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.


Billy Johnson, Plaintiff

Sworn to before me this
19 day of February, 2016



Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BILLY JOHNSON

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER MORONI, SHIELD # 24187,
INDIVIDUALLY AND AS A POLICE OFFICER,
AND POLICE OFFICER CHRIS CICCOLO, SHIELD
#6731, INDIVIDUALLY AND AS A POLICE OFFICER,
Defendant(s).

AMENDED SUMMONS AND AMENDED VERIFIED COMPLAINT

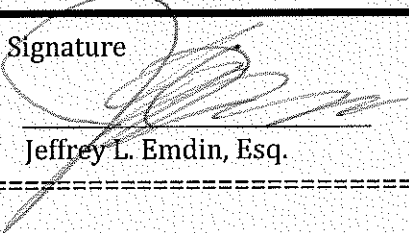
LAW OFFICES OF EMDIN & RUSSELL
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

TO: Corporation Counsel
Attorney for Defendants
100 Church Street
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: February 11, 2016

Signature


Jeffrey L. Emdin, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT that an order of which the within is a true copy will be
presented for settlement to the HON. one of the judges of the within named Court, at
on 20__

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
BILLY JOHNSON,

Plaintiff,

- against -

**STIPULATION TO
WITHDRAW**

Index No. 153851-2014

City File No. 2014-016244

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER MORONI, SHIELD #24187,
INDIVIDUALLY AND AS A POLICE OFFICER, AND
POLICE OFFICER JOHN DOE, TRUE IDENTITY
PRESENTLY UNKNOWN, INDIVIDUALLY AND AS A
POLICE OFFICER

Defendants.
----- X

IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned attorneys for the respective parties herein, that Plaintiff hereby **WITHDRAWS** the motion compel and for sanctions, which is currently returnable on February 9, 2016 at 60 Centre Street, Room 130 New York, New York.

The parties further stipulate that dates for examinations before trial of Police Officers Moroni and Ciccolo are April 1 and 12, 2016 respectively and that the officers must appear.

The parties further stipulate that the Summons and Complaint is amended to reflect that Police Officer Ciccolo badge number 6731 individually and as a Police Officer, is substituted in place of Police Officer John Doe.

Finally, the parties agree that the defendant, City of New York, shall pay for the busted deposition dated November 20, 2015 forthwith. This Stipulation may be filed without further notice with the Clerk of the Court.

The City shall file this stipulation with the Court.

IT IS FURTHER STIPULATED AND AGREED by and between the undersigned attorneys that this stipulation may be signed in counterparts and a facsimile signature is deemed an original for all purposes.

Dated: New York, New York
February 8, 2016


EMDIN & RUSSELL, LLP
ATTORNEYS FOR PLAINTIFF
499 SEVENTH AVENUE-FL 12N
NEW YORK, NEW YORK
BY: Jeffrey L. Emdin
(212) 683-3995


ZACHARY W. CARTER
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Attorney for Defendants, City of New York and Police
Officer Moroni
THE CITY OF NEW YORK, et. al.
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